【英语一】 2010 阅读 Text2

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P1 ① Over the past decade, **thousands of** patents have **been granted for** what are called business methods. ② **Amazon.com** received one for its "one-click" online payment system. ③ **Merrill Lynch** got legal protection for an asset allocation strategy. ④ One inventor patented a technique for lifting a box.

①过去十年间，数以千计的所谓商业方法获得了专利授权。②亚马逊公司凭借其“一键式”在线支付系统获得了一项此类专利。③美林公司则为一种资产配置策略取得了法律保护。④还有一位发明者为一种搬箱子的方法获得了专利。

P2 ① Now the nation's top patent court appears completely **ready to scale back** on business-method patents, which have been controversial **ever since** they were first authorized 10 years ago. ② In a move that has intellectual-property lawyers abuzz, the **U.S. Court of Appeals for the Federal Circuit** said it would use a particular case to conduct a broad review of business-method patents. ③ In re Bilski, as the case is known, is "a very big deal", says **Dennis D. Crouch** of the **University of Missouri School of Law**. ④ It "has the potential to eliminate an entire class of patents."

①如今，美国最高专利法院似乎已经完全准备好缩减商业方法专利，而这类专利自十年前首次获准以来就一直饱受争议。②美国联邦巡回上诉法院表示，将借助一起具体案件对商业方法专利进行全面审查，此举令知识产权律师界议论纷纷。③密苏里大学法学院的丹尼斯·D·克劳奇表示，这起被称为“比尔斯基案”（In re Bilski）的案件“意义非同小可”。④它“有可能取消一整类专利”。

P3 ① Curbs on business-method claims would be a dramatic about-face, because it was **the Federal Circuit** itself that introduced such patents with its 1998 decision in the so-called **State Street Bank** case, approving a patent on a way of pooling mutual-fund assets. ② That ruling produced an explosion in business-method patent filings, initially by emerging Internet companies **trying to stake out** exclusive rights to specific types of online transactions. ③ Later, more established companies raced to **add** such patents **to** their files, **if only** as a defensive move against rivals that might **beat** them **to the punch**. ④ In 2005, IBM noted in a court filing that it had been issued more than 300 business-method patents, despite the fact that it questioned the legal basis for granting them. ⑤ Similarly, some **Wall Street** investment firms **armed** themselves **with** patents for financial products, **even as** they took positions in court cases opposing the practice.

①对商业方法权利主张加以限制将是一次戏剧性的180度转变，因为正是联邦巡回法院自己，在1998年所谓的“道富银行案”判决中确立了此类专利，认可了一项关于共同基金资产归集方法的专利。②该判决使商业方法专利申请激增，最初提出申请的是一些新兴的互联网公司，它们试图为特定类型的在线交易圈定独占权。③此后，更为成熟的公司也竞相把这类专利收入囊中，哪怕只是为了防御——以免被竞争对手抢先一步。④2005年，IBM在一份法庭文件中指出，公司已获得300多项商业方法专利，尽管它本身对授予这类专利的法律依据持有异议。⑤类似地，一些华尔街投资公司也为金融产品取得专利以自我武装，尽管它们同时在法庭案件中表态反对这种做法。

P4 ① The Bilski case involves a claimed patent on a method for hedging risk in the energy market. ② The **Federal Circuit** issued an unusual order stating that the case would be heard by all 12 of the court's judges, **rather than** a typical panel of three, and that one issue it wants to evaluate is whether it should "reconsider" its **State Street Bank** ruling.

①比尔斯基案涉及的是一项针对能源市场风险对冲方法的专利主张。②联邦巡回法院发布了一项不同寻常的命令，宣布此案将由该院全部12名法官共同审理，而非通常的三人合议庭，并表示它想评估的问题之一，就是要不要“重新考虑”其在道富银行案中的判决。

P5 ① The **Federal Circuit**'s action comes **in the wake of** **a series of** recent decisions by the **Supreme Court** that has narrowed the scope of protections for patent holders. ② Last April, **for example**, the justices signaled that too many patents were being upheld for "inventions" that are obvious. ③ The judges on the **Federal Circuit** are "**reacting to** the anti-patent trend at the Supreme Court", says **Harold C. Wegner**, a patent attorney and professor at **George Washington University** Law School.

①联邦巡回法院此番举动，紧随最高法院近期一系列判决而来，这些判决缩小了专利持有人所受保护的范围。②例如，去年4月，最高法院的大法官们已经表明，太多显而易见的“发明”被认定为有效专利。③乔治·华盛顿大学法学院教授、专利律师哈罗德·C·韦格纳说，联邦巡回法

Q1. Business-method patents have recently aroused concern **because of**_____.

细节题

[A] their limited value to businesses

[B] their connection with asset allocation

[C] the possible restriction on their granting

[D] the controversy over their authorization

商业方法专利最近引起关注是因为_____。

A.它们对企业的价值有限

B.它们与资产分配有关

C.此类专利的授予可能受到限制

D.专利授权引起了争议

Q2. Which of the following is true of the Bilski case? 细节题

[A] Its ruling **complies with** the court decisions.

[B] It involves a very big business transaction.

[C] It has been dismissed by the **Federal Circuit**.

[D] It may change the legal practices in the U.S.

有关比尔斯基案，下列哪项是正确的？

A.它的裁决符合法院的判决。

B.它涉及一笔很大的商业交易。

C.它被美国联邦巡回法院驳回。

D.它可能改变美国的法律惯例。

Q3. The word "about-face" (Line1, Para.3) most probably means_____.

词句理解题

[A] loss of goodwill

[B] increase of hostility

[C] change of attitude

[D] enhancement of dignity

第三段第一行中“about-face”一词的含义最可能是_____。

A.缺少善意

B.增加敌意

C.改变态度

D.提高尊严

Q4. We learn from the last two paragraphs that business-method patents_____.

细节题

[A] **are immune to** legal challenges

[B] are often unnecessarily issued

[C] lower the esteem for patent holders

[D] increase the incidence of risks

我们可以从最后两段了解到商业方法专利_____。

A.不受法律的挑战

B.往往没有必要授予

C.降低对专利持有人的尊重

D.增加风险的发生率

Q5. Which of the following would be the subject of the text? 主旨题

[A] A looming threat to business-method patents.

[B] Protection for business-method patent holders.

[C] A legal case regarding business-method patents.

[D] A prevailing trend against business-method patents.

以下哪一项会是这篇文章的主题？

A.商业方法专利即将面临的一项威胁。

B.对商业方法专利持有人的保护。

C.一个有关商业方法专利的法律案件。

D.反对商业方法专利的主流趋势。